In 1976, the Untouchability (Offences) Act, 1955 has been comprehensively amended and renamed as the Protection of Civil Rights Act, 1955 to enlarge the scope and make penal provisions more stringent. The act defines civil right as any right accruing to a person by reason of the abolition of untouchability by Article 17 of the Constitution.

The term 'untouchability' has not been defined either in the Constitution or in the Act. However, the Mysore High Court held that the subject matter of Article 17 is not untouchability in its literal or grammatical sense but the 'practice as it had developed historically in the country'. It refers to the social disabilities imposed on certain classes of persons by reason of their birth in certain castes. Hence, it does not cover social boycott of a few individuals or their exclusion from religious services, etc.

In the People's Union for Democratic Rights case[9a] (1982), the Supreme Court held that the right under Article 17 is available against private individuals and it is the constitutional obligation of the State to take necessary action to ensure that this right is not violated.

5. Abolition of Titles

Article 18 abolishes titles and makes four provisions in that regard:

1. It prohibits the state from conferring any title (except a military or academic distinction) on any body, whether a citizen or a foreigner.

2. It prohibits a citizen of India from accepting any title from any foreign state.

3. A foreigner holding any office of profit or trust under the state cannot accept any title from any foreign state without the consent of the president.

4. No citizen or foreigner holding any office of profit or trust under the State is to accept any present, emolument or office from or under any foreign State without the consent of the president.

From the above, it is clear that the hereditary titles of nobility like Maharaja, Raj Bahadur, Rai Bahadur, Rai Saheb, Dewan Bahadur, etc, which were conferred by colonial States are banned by Article 18 as these are against the principle of equal status of all.

In the Balaji Raghavan case[10] (1995), the Supreme Court upheld the constitutional validity of the National Awards—Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Sri. It ruled that these awards do not amount to 'titles' within the meaning of Article 18 that prohibits only hereditary titles of nobility. Therefore, they are not violative of Article 18 as the theory of equality does not mandate that merit should not be recognised. However, it also ruled that they should not be used as suffixes or prefixes to the names of awardees. Otherwise, they should forfeit the awards.

These National Awards were instituted in 1954. The Janata Party government headed by Morarji Desai discontinued them in 1977. But they were again revived in 1980 by the Indira Gandhi government.

The Padma Awards are announced every year on the occassion of Republic Day except for brief interruptions during the years 1978 and 1979 and 1993 to 1997.

The total number of Padma Awards to be given in a year (excluding Posthumous awards and awards given to NRIs/Foreigners/OCIs) should not be more than 120. Similarly, the number of Bharat Ratna Awards is restricted to a maximum of three in a particular year.